

Amendment No. 1 to SB0841

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 841

House Bill No. 473*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 40-35-321, is amended by adding the following as a new subsection:

(f)

(1) If a person is arrested for a felony offense occurring on or after July 1, 2025, then the person shall have a biological specimen taken for the purpose of DNA analysis to determine identification characteristics specific to the person. After a determination by a magistrate or a grand jury that probable cause exists for the arrest, but prior to the person's release from custody, the arresting authority shall take the sample using a buccal swab collection kit for DNA testing and forward the sample to the Tennessee bureau of investigation. The arresting authority shall collect the biological specimen in accordance with the uniform procedures established by the Tennessee bureau of investigation pursuant to § 38-6-113. The Tennessee bureau of investigation must maintain the sample as provided in § 38-6-113. The court or magistrate shall make the provision of the specimen a condition of the person's release on bond or recognizance if bond or recognizance is granted.

(2) The clerk of the court in which the charges against a person described in subdivision (f)(1) are disposed of shall notify the Tennessee bureau of investigation of final disposition of the criminal proceedings. If the charge for which the sample was taken is dismissed or the defendant is acquitted at trial,

then the bureau shall destroy the sample and all records of the sample; provided, that there is no other pending qualifying warrant or capias for an arrest or felony conviction that would otherwise require that the sample remain in the data bank.

(3) Notwithstanding subdivision (f)(1), if the arresting authority has verified that a biological specimen has already been collected from the person pursuant to this section or § 38-6-113, and the existing sample is accessible to the Tennessee bureau of investigation for DNA analysis and identification purposes, then the arresting authority is not required to collect an additional specimen pursuant to this subsection (f).

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.